



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

JUL 31 1992

DOT-E 8893
(SECOND REVISION)

1. ICI Explosives Inc., Dallas, Texas, (formerly Atlas Powder Company), is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a flammable liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a mixture containing, by weight, 10% Trimethylolethane Trinitrate (TMETN) and 90% Methanol in prescribed packagings and provides no relief from any regulations other than as specifically stated. References to 49 CFR sections in this exemption are to regulations in effect on September 30, 1990.

2. BASIS. This exemption is based on ICI Explosives Inc.'s (formerly Atlas Powder Company) application dated May 7, 1992 and supplemental letter dated April 24, 1992, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). A solution of Trimethylolethane Trinitrate (TMETN) (not exceeding 10% by weight in Methanol) classed as a flammable liquid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Trimethylolethane Trinitrate/Methanol solution.

5. REGULATION AFFECTED. 49 CFR 172.101.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is:

a. A new 25 gallon, 22 gauge steel drum approximately 20 inches in diameter and 25 inches high, fitted with a ring lock closure and with inside packaging as follows:

(i) DOT Specification 37P metal drum not exceeding 5 gallons capacity, or

(ii) DOT Specification 5B metal drum with DOT Specification 2S polyethylene liner not exceeding 5 gallons capacity.

(iii) The void between the inner and outer drums must be filled with an inert fire resistant cushioning material.

b. A DOT Specification 6J, 18 gauge metal drum, not over 55 gallon capacity fitted with a ring lock closure, and with inside packaging as follows:

(i) A DOT Specification 6D cylindrical steel overpack with a DOT Specification 2S liner not exceeding 5 gallons capacity; or

(ii) A DOT Specification 5B metal drum with a DOT Specification 2S liner, not exceeding 5 gallons capacity.

(iii) The void between the inner and outer drums must be filled with an inert fire resistant cushioning material.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

d. Packagings must be subjected to careful inspection before each shipment to see that they are not leaking. Packagings showing defects which might result in leakage during transit may not be continued in this service.

e. Each 25 gallon steel drum described in paragraph 7.a. may be reused provided it is thoroughly cleaned and examined inside and outside prior to its reuse. Reuse of damaged drums is not authorized.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

10. EXPIRATION DATE. May 31, 1994.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 31 1992

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

Dist: FHWA